



MEMORANDUM

TO: Governing Body, City of Cheyenne
FROM: Renee Smith, Grants Manager
DATE: NOVEMBER 1, 2023
SUBJECT: MOU BETWEEN THE CHEYENNE DEPOT MUSEUM AND THE CITY OF CHEYENNE REGARDING THE CHARITABLE CONTRIBUTION FROM THE INDIANAPOLIS FOUNDATION TO SUPPORT THE RESTORATION OF OLD SADIE FOR THE 15TH STREET RAIL PROJECT

In June 2022, the Cheyenne Depot Museum was given the opportunity to request funds from the Central Indiana Community Foundation through the David Donoho-A Friend of the #844 Fund. This fund was created to support steam engine projects across the country. In August 2022, the Museum was awarded \$480,000 to be used solely to support the restoration and preservation of Old Sadie, relocation expenses, and some ground site preparation of 15th Street where she will be a part of the 15th Street Railcar Experience.

Attached for your review and approval is a Memorandum of Understanding that establishes the terms and conditions for the use of these funds.

Please contact me directly if you have any questions about the MOU and donation at rsmith@cheyennecity.org or (307) 637-6285

MEMORANDUM OF UNDERSTANDING
between
THE CHEYENNE DEPOT MUSEUM INC AND THE CITY OF CHEYENNE

Regarding
THE CHARITABLE CONTRIBUTION FROM THE DAVID DONOHO - A FRIEND OF
THE #844 FUND, A FUND OF THE INDIANAPOLIS FOUNDATION TO THE
CHEYENNE DEPOT MUSEUM TO SUPPORT THE RESTORATION OF OLD SADIE
FOR THE 15TH STREET RAIL PROJECT

This MEMORANDUM OF UNDERSTANDING (hereinafter “MOU”) is made and entered into by and between, the Cheyenne Depot Museum Inc, 121 W 15th Street, Ste 300, Wyoming 82001 (hereinafter referred to as “MUSEUM”), and the City of Cheyenne, 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (hereinafter referred to as “CITY”), each is a “Party” and, collectively, are the “Parties”.

1. **Purpose:** In 2021, Cheyenne approved a Tourism Master Plan that included the development of the 15th Street Railroad Experience as one of its top goals, to showcase Cheyenne’s steam engine heritage and to create a gathering space for residents, tourists, and train enthusiasts. In June 2022, the CITY received an Economic Development Administration grant award of six hundred eight thousand four hundred dollars (\$618,400) for the Cheyenne Railcar Project to relocate and rehabilitate three railcars. In August 2022, the MUSEUM received a grant award of four hundred eighty thousand dollars (\$480,000) from the I David Donoho – A Friend of the #844 Fund, a fund of The Indianapolis Foundation for the restoration of Old Sadie, Steam Engine No.1242. The Parties recognize that these funding sources will be used to complete Phase 1 of the proposed Railcar Experience and this MOU will be used solely for the purpose of providing restoration and critical infrastructure for the placement of Old Sadie and its asbestos remediation and rehabilitation.

2. **Term:** This MOU is effective upon the day and date last signed and executed by the duly authorized representatives of the Parties to this MOU and shall remain in full force and effect until December 14, 2026 unless terminated at an earlier date pursuant to the provisions of this MOU, or federal or state statute, rule or regulation. Extension of the term may occur in writing with the consent of all Parties.

3. **Responsibilities of MUSEUM:** The MUSEUM shall reimburse the CITY for approved expenses as provided for in this agreement, up to the amount of four hundred eighty thousand dollars (\$480,000) over the course of the project. Funds are to be used solely to support the asbestos remediation, rehabilitation, restoration, and critical infrastructure for the placement of Old Sadie or any projects approved in writing by the donor and agreed upon by the MUSEUM. MUSEUM will follow all grant reporting requirements as per the David Donoho - A Friend of the #844 Fund, A Fund of the Indianapolis Foundation. Both parties agree and acknowledge that in no event shall the MUSEUM have any obligation to pay the CITY, or any third party in excess of four hundred eighty thousand dollars (\$480,000), which represents the full principal amount of the grant award from the I David Donoho – A Friend of the #844 Fund a fund of The Indianapolis Foundation for the restoration of Old Sadie, Steam Engine No.1242.

4. **Responsibilities of CITY:** The CITY will request MUSEUM staff to review, edit, and approve any bid or construction documents, including final acceptance of bids. The CITY acknowledges that the MUSEUM may accept higher bids based on the qualifications of the bidder to maintain historical accuracy during restoration. The CITY will submit quarterly reimbursement requests with complete supporting documentation and will perform all grant management requirements as set forth within the MOU. Grant acknowledgement: CITY will use the following language in any publications or PR materials relating to the project and identify the

grant as from the DAVID DONOHO - A FRIEND OF THE #844 FUND, A FUND OF THE INDIANAPOLIS FOUNDATION.

5. **General Provisions.**

A. **Entire Agreement:** This MOU, consisting of 6 pages, represents the entire and integrated MOU between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

B. **Amendments:** Any Party may request changes to this MOU. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by and between the Parties to this MOU shall be incorporated by written instrument, and effective when executed and signed by all Parties to this MOU.

C. **Assignment:** Neither this MOU, nor any rights or obligations hereunder shall be assigned or delegated by any Party without the prior written consent of all other Party.

D. **Termination:** This MOU may be terminated (a) by any Party at any time for failure of any other Party to comply with the terms and conditions of this MOU; (b) without cause, by any Party upon thirty (30) days written notice, which notice shall be delivered by hand or by certified mail; or (c) upon mutual written agreement by all Parties.

E. **Applicable Law and Venue:** The Parties mutually understand and agree this MOU shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the Parties from or concerning this MOU or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting in Cheyenne, Wyoming. The foregoing provision of this paragraph is agreed to by the Parties to be a material inducement in executing this MOU. This

provision is not intended, nor shall it be construed to waive the MUSEUM's or the CITY's governmental immunity as provided in this MOU.

F. Discrimination: All Parties agree they will not discriminate against any person who performs work under the terms and conditions of this MOU because of race, sex, color, religion, national origin, age, genetic information, physical or mental handicap, or veteran status.

G. ADA Compliance: The Parties agree they will not discriminate against a qualified individual with disability, pursuant to the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C § 12101, *et seq.*, as amended, and/or any properly promulgated rules and regulations relating thereto.

H. Governmental Immunity: The CITY and the MUSEUM do not waive their governmental immunity by entering this MOU, and fully retain all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.

I. Indemnification: Each Party to this agreement shall be responsible for any liability arising from its own conduct. Neither Party agrees to insure, defend or indemnify the other.

J. Third Parties: The Parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the Parties to the MOU and shall inure solely to the benefit of the Parties to this MOU.

K. Force Majeure: No Party shall be liable to perform under this MOU if such failure arises out of causes beyond control, and without the fault or the negligence of said Party. Such causes may include, but are not limited to, Acts of God or the public enemy, fires, floods, epidemics, pandemics, quarantine restrictions, freight embargos, and unusually severe

weather. In any case, however, a failure to perform must be beyond the control and without the fault or the negligence of said Party.

L. Notices: All notices required and permitted under this MOU shall be provided at the earliest time possible but in no event less than fourteen (14) days prior to the action, change or other matter requested. In addition, all notices required and permitted under this MOU shall be deemed to have been given, when deposited in the U.S. Mail, properly stamped and addressed to the Party for whom intended at such Parties' address listed herein, or when personally delivered to such Party. A Party may change its address for notice hereunder by giving written notice to the other Party.

M. Compliance with Laws: All Parties shall comply with all applicable laws, statutes, regulations, and ordinances, whether Federal, State or Local.

N. Governing Law, Jurisdiction and Venue. The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

O. Severability: Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect, and either Party may renegotiate the terms affected by the severance.

P. Signatures: In witness whereof, the Parties to this MOU through their duly authorized representatives have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

MEMORANDUM OF UNDERSTANDING
Among
THE CHEYENNE DEPOT MUSEUM INC AND THE CITY OF CHEYENNE

Signature Page

The Cheyenne Depot Museum Inc (for MUSEUM)

By: Christy McCarthy
Christy McCarthy, Chief Executive Officer

10-18-2023
Date

City of Cheyenne, Wyoming (for CITY)

By: _____
Patrick J. Collins, Mayor, City of Cheyenne

Date

This MOU is effective the date of the last signature affixed to this page.

REVIEWED AND APPROVED AS TO FORM ONLY:

By: _____
Stefanie Boster, City Attorney's Office

Date

(SEAL)
Attest:

Kristina F. Jones, City Clerk

Date